

May 18, 2009



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9940
(TWELFTH REVISION)

EXPIRATION DATE: April 30, 2011

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GE Reuter-Stokes
Twinsburg, OH
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of non-DOT specification containers described as hermetically sealed electron tube devices for the transportation in commerce of certain Division 2.2 gases. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.306 and 175.3 in that non-DOT specification containers are not authorized except as specified herein; and the labeling and placarding requirements in Subparts E and F of Part 172.
5. BASIS: This special permit is based on the application of GE Reuter-Stokes dated May 11, 2007, submitted in accordance with § 107.109 and an additional application dated May 11, 2009.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Argon, compressed	2.2	UN1006	N/A
Carbon dioxide	2.2	UN1013	N/A
Helium, compressed	2.2	UN1046	N/A
Krypton, compressed	2.2	UN1056	N/A
Neon, compressed	2.2	UN1065	N/A
Nitrogen, compressed	2.2	UN1066	N/A
Tetrafluoromethane	2.2	UN1982	N/A
Xenon, compressed	2.2	UN2036	N/A
Compressed gas, n.o.s. (mixtures of the gases listed above, with or without 5% or less methane)	2.2	UN1956	N/A

7. SAFETY CONTROL MEASURES: Packagings prescribed are non-DOT specification, metal, single trip, inside containers, described as hermetically sealed electron tube radiation sensors. The radiation sensors have volumes not exceeding 500 cubic inches water capacity, and design (operating) pressures not exceeding 450 psig. Each radiation sensor is designed and constructed in accordance with GE Reuter-Stokes Technical Specification Number ER-Q-0050-18 dated March 3, 1988, on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). The radiation sensor must be shipped in a strong outside packaging capable of withstanding a minimum drop test of six feet without breakage of the radiation sensor or rupture of the outside packaging. The design burst pressure of the radiation sensor must be at least 5 times the design pressure.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. If repackaged, packagings used to ship larger equipment containing radiation sensors covered by this special permit must be strong outside packagings providing equivalent protection for the devices as specified in paragraph 7 above.

g. Except when offered for transportation by air:

(1) Packages covered by this special permit are excepted from the labeling requirements of subpart E of Part 172.

(2) Shipments are not subject to the placarding requirements of subpart F of Part 172.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM